



ORDER ON APPLICATION FOR WAIVER OF CRIMINAL AND/OR TRAFFIC COURT ASSESSMENTS FOR USE IN COOK COUNTY ONLY

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COOK COUNTY

The People of the State of Illinois or the Charging Municipality or Local
Government Unit,
PLAINTIFF

v.

DEFENDANT/RESPONDENT: _____

Who is being charged.

First, Middle, and Last Name

Case Number _____

Your Name (applicant): _____
First Middle Last Name



DO NOT check any boxes or fill in any more blanks on this form. The judge will complete the rest of the form.

The Court has reviewed the *Application for Waiver of Criminal and/or Traffic Court Assessments* and orders (check 1, 2, 3, or 4):

☐ **1. GRANTED – FULL WAIVER OF CRIMINAL COURT ASSESSMENTS**

The *Application for Waiver of Criminal and/or Traffic Court Assessments* is granted for all **criminal court assessments**, effective on the date the *Application* was first filed. The applicant qualifies for a **full (100%) waiver** of all criminal court assessments because (check A, B, or C):

☐ **A.** The applicant receives **means-based public benefits** under one or more of the following programs:

- SSI (Supplemental Security Income, not Social Security)
- AABD (Aid to the Aged, Blind and Disabled)
- TANF (Temporary Assistance to Needy Families)
- SNAP (Food Stamps)
- General Assistance (GA), Transitional Assistance, or State Children and Family Assistance

- OR -

☐ **B.** The applicant's personal income is **200% or less of the current poverty level** as established by the U.S. Dept. of Health & Human Services and the applicant's non-exempt assets under [735 ILCS 5/12-901](#) and [735 ILCS 5/12-1001](#) are such that the applicant is unable to pay the assessments.

- OR -

☐ **C.** Payment of assessments would cause **undue hardship** for the applicant or their family.

☐ **2. GRANTED – PARTIAL WAIVER OF CRIMINAL COURT ASSESSMENTS**

The *Application for Waiver of Criminal and/or Traffic Court Assessments* is granted for **criminal court assessments**, effective on the date the *Application* was first filed. The court finds (*check one*):

- ☐ **75%** of all criminal court assessments are waived. The applicant **must pay 25%** of assessments because the applicant's available income is more than 200% but not greater than 250% of the current poverty level; or
- ☐ **50%** of all criminal court assessments are waived. The applicant **must pay 50%** of assessments because the applicant's available income is more than 250% but not greater than 300% of the current poverty level; or.
- ☐ **25%** of all criminal court assessments are waived. The applicant **must pay 75%** of assessments because the applicant's available income is more than 300% but not greater than 400% of the current poverty level.

Income findings are based on the current poverty level as established by the U.S. Dept. of Health & Human Services, and the applicant's non-exempt assets under [735 ILCS 5/12-901](#) and [735 ILCS 5/12-1001](#) are such that the applicant is unable to pay the assessments.

Payment (*check one*):

- ☐ The applicant must pay the assessments currently due by: _____
Month, Day, Year
- ☐ Upon good cause shown, the applicant may make payments as follows (*describe deferral, installment plan, or other reasonable terms*):
- _____
- _____

☐ **3. GRANTED – PARTIAL WAIVER OF TRAFFIC COURT ASSESSMENTS**

*Section 3 applies to **traffic court assessments** under Schedules 2, 6, 9, 10, and 13.*

The *Application for Waiver of Criminal and/or Traffic Court Assessments* is granted for **traffic court assessments**, effective on the date the *Application* was first filed. The court finds (*check one*):

- ☐ **A.** The applicant receives **means-based public benefits** under one or more of the following programs (**50% waived**):
- SSI (Supplemental Security Income, not Social Security)
 - AABD (Aid to the Aged, Blind and Disabled)
 - TANF (Temporary Assistance to Needy Families)
 - SNAP (Food Stamps)
 - General Assistance (GA), Transitional Assistance, or State Children and Family Assistance
- OR -
- ☐ **B.** Payment of assessments would cause **undue hardship** for the applicant or their family (**50% waived**).
- OR -

☐ **C. Partial waiver of:**

- ☐ **50%** of all criminal court assessments are waived. The applicant **must pay 50%** of assessments because the applicant's available income is up to 200% of the current poverty level; or
- ☐ **37.5%** of all criminal court assessments are waived. The applicant **must pay 62.5%** of assessments because the applicant's available income is more than 200% but not greater than 250% of the current poverty level; or
- ☐ **25%** of all criminal court assessments are waived. The applicant **must pay 75%** of assessments because the applicant's available income is more than 250% but not greater than 300% of the current poverty level; or
- ☐ **12.5%** of all criminal court assessments are waived. The applicant **must pay 87.5%** of assessments because the applicant's available income is more than 300% but not greater than 400% of the current poverty level.

Income findings are based on the current poverty level as established by the U.S. Dept. of Health & Human Services, and the applicant's non-exempt assets under [735 ILCS 5/12-901](#) and [735 ILCS 5/12-1001](#) are such that the applicant is unable to pay the assessments.

Payment (check one):

☐ The applicant must pay the assessments currently due by: _____
Month, Day, Year

☐ Upon good cause shown, the applicant may make payments as follows (*describe deferral, installment plan, or other reasonable terms*):

☐ **4. CONTINUED – APPLICATION IS INCOMPLETE OR FACTUAL ISSUE**

If the court determines that relevant sections of the Application are incomplete or there is a factual issue regarding the applicant's entitlement to a waiver, the applicant must be notified of the deficiencies and given the opportunity to amend the Application and/or be given a remote hearing in accordance with Supreme Court Rule [45](#), unless the applicant requests an in-person hearing or will already be present in the courthouse on the date of the hearing.

Relevant sections of the *Application* are incomplete or there is a factual issue about the applicant's eligibility for a waiver of criminal court assessments on the face of the *Application*.

The specific eligibility questions are:

The applicant must (check all that apply):

- ☐ **A. File an updated (amended) Application** that includes the missing information listed above.
- ☐ **B. Attend a court date.**

*If a hearing is set, it must be set within **30 days** of the date the Application was filed ([725 ILCS 5/124A-20](#); Supreme Court Rule [404](#)).*

The Application for Waiver of Criminal Court Assessments is **scheduled for court** on (check all that apply):

Date: _____ Time: _____
Month, Day, Year Include a.m. or p.m.

- ☐ **Remotely** (video or telephone option)

By video conference at: _____
Video conference website

Video conference log-in information, meeting ID, password, etc.

By telephone at: _____
Call-in number for telephone remote appearance

- ☐ **In person at:** _____
Courtroom Address Courtroom Number

If remote and in-person options are both checked, you may choose either option.

- ☐ **C. Provide documents.** These documents will **not** be included in the public court file.
- ☐ Provide documents at the hearing.
- ☐ Submit documents before the hearing. Instructions about when and how to submit:

 Required documents are:

☐ **5. DENIED - DOES NOT QUALIFY**

The Application for Waiver of Criminal and/or Traffic Court Assessments is **denied**. The applicant does not qualify for a waiver of criminal court assessments because (*must state specific reason*):

The applicant must pay all the assessments currently due by:

Month, Day, Year



Assessments included in this waiver are any charged to a criminal defendant under [705 ILCS 135/15-5 through 15-70](#).

ENTERED:

Judge

Date (Month, Day, Year)